

Defendant promptly filed and served early in this litigation—is sufficient to show refusal or failure to arbitrate the controversy.

The Court further finds that Plaintiff has failed or refused to arbitrate in accordance with the Arbitration Agreement.

Lastly, the Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

*Although an arbitration agreement may provide that the arbitration is to be governed by the FAA, generally the California Arbitration Act governs arbitral procedures brought in California courts. *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 922. There has been no showing of some FAA specific limitation relevant to enforcement of the subject Arbitration Agreement in this case. In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration. *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC, supra*, 55 Cal.4th at 236.

Disposition

The Court finds and orders as follows:

1. The Arbitration Motion is GRANTED.
2. **Defendant, as the party electing arbitration, shall select the arbitration forum, JAMS or AAA (the “Arbitration Service Provider”) and contact such Arbitration Service Provider to initiate the arbitration process in accordance with the Arbitration Agreement and the rules of the Arbitration Service Provider.**
3. The pending action is STAYED until an arbitration is completed pursuant to the terms and conditions of the Arbitration Agreement or further order of the Court.
4. Lastly, the Court shall set the matter for a Case Management Conference (CMC) in 180 days, regarding the status of arbitration completion, and give notice of such CMC to all parties.

10. 9:00 AM CASE NUMBER: L25-10335

CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. SHELLY ROBINSON

***MOTION/PETITION TO COMPEL ARBITRATION COMPEL ARBITRATION AND STAY PROCEEDINGS
FILED BY:**

TENTATIVE RULING:

Defendant Shelly Robinson (“Defendant”) filed a Motion to Compel Arbitration and Stay Proceedings on October 31, 2025 (the “Arbitration Motion”). The Arbitration Motion was set for hearing on December 16, 2025.

A Proof of Service of the motion on the plaintiff American Express National Bank (“Plaintiff”) has been filed.

Plaintiff filed an Opposition on December 1, 2025.

Background

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties' agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 3.37. Arbitration involves the waiver of the right to a jury trial and generally involves limits on the scope of judicial review of an arbitration decision. *Id.*

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, **arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate.** Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard "in a summary way in the manner ... provided by law for the making and hearing of motions." Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id.*

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96, quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.

The Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) ("FAA") applies to agreements involving interstate commerce. See *Gamma Eta Chapter of Pi Kappa Alpha v. Helvey* (2020) 44 Cal.App.5th 1090, 1098. Where no party raises the issue of interstate commerce or applicability of the FAA, the court applies California law. *Id.*

Analysis

Defendant's motion contends that the parties' contract contains "an arbitration clause allowing either party to elect arbitration..." See Declaration of Shelly Robinson attached as part of Arbitration Motion, p. 3, ¶3.

Although the referenced cardmember agreement with the arbitration clause is not attached to the motion papers, Plaintiff's Opposition concedes that the subject cardmember agreement contains an arbitration clause and attaches a copy. See Declaration of Eric. J. Jun dated December 1, 2025 ("Jun Decl.") and **Exhibit A** thereto (the "Cardmember Agreement").

Accordingly, the Court finds that a written agreement to arbitrate exists (the "Arbitration Agreement"), as set forth in the Cardmember Agreement. See Cardmember Agreement, p.

7, Jun Decl., **Exhibit A**. The Arbitration Agreement is governed by the FAA.* *Id.* (“This Arbitration provision is governed by the FAA.”).

The Court further finds that there is a controversy between the parties that is subject to the Arbitration Agreement. It is evident that the claims at issue in this action, as pled in the operative Complaint by Plaintiff, are within the scope of and subject to that agreement.

The Court has considered and reject’s Plaintiff’s contention that the motion should be denied because Plaintiff has not served a “claim notice or Demand for Arbitration form.” Defendant’s motion constitutes a demand and notice for arbitration in accordance with the terms of the Arbitration Agreement. See Arbitration Agreement, “Initiating Arbitration” (“Before beginning arbitration, you or we must first send a claim notice.”).

Moreover, a formal demand is not necessarily a prerequisite to seeking a court order compelling arbitration. See *Hyundai Amco America, Inc. v. S3H, Inc.* (2014) 232 Cal.App.4th 572, 577. Rather, it only need be shown that the other party has refused to arbitrate. *Id.* Plaintiff’s filing of a lawsuit and its opposition to the pending motion—which Defendant promptly filed and served early in this litigation—is sufficient to show refusal or failure to arbitrate the controversy.

The Court further finds that Plaintiff has failed or refused to arbitrate in accordance with the Arbitration Agreement.

Lastly, the Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

*Although an arbitration agreement may provide that the arbitration is to be governed by the FAA, generally the California Arbitration Act governs arbitral procedures brought in California courts. *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 922. There has been no showing of some FAA specific limitation relevant to enforcement of the subject Arbitration Agreement in this case. In determining the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration. *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC, supra*, 55 Cal.4th at 236.

Disposition

The Court finds and orders as follows:

1. The Arbitration Motion is GRANTED.
2. **Defendant, as the party electing arbitration, shall select the arbitration forum, JAMS or AAA (the “Arbitration Service Provider”) and contact such Arbitration Service Provider to initiate the arbitration process in accordance with the Arbitration Agreement and the rules of the Arbitration Service Provider.**
3. The pending action is STAYED until an arbitration is completed pursuant to the terms and conditions of the Arbitration Agreement or further order of the Court.
4. Lastly, the Court shall set the matter for a Case Management Conference (CMC) in

180 days, regarding the status of arbitration completion, and give notice of such CMC to all parties.

11. 9:00 AM CASE NUMBER: MSL16-00896

CASE NAME: LOBEL FINANCIAL CORP VS. BREANNE WEST

***HEARING ON MOTION IN RE: VACATE DEFAULT AND DEFAULT JUDGMENT FILED BY: WEST, BREANNE**

FILED BY:

TENTATIVE RULING:

Defendant and Judgment Debtor Breanne West (“Defendant”) filed a Motion to Vacate Default and Default Judgment on August 15, 2025 (“Motion to Set Aside Default”). The Motion to Set Aside Default was initially set for hearing on November 17, 2025. The hearing was later continued to December 16, 2025. The motion is opposed.

Background

Plaintiff and Judgment Lobel Financial Corp. (“Plaintiff”) filed a Complaint on March 21, 2016.

A Proof of Service of Summons was filed May 2, 2016 (the “5/2/16 POSS”). The 5/2/16 POSS reflects substitute service on Defendant on April 13, 2016 at an address of 1100 Howe Ave #132, Sacramento, California, by delivery to “Co-Occupant” D.J. Watts. 5/2/16 POSS, ¶¶3-5. The service was done by a registered process server. *Id.* at ¶7.

A default was entered against Defendant on June 2, 2017 (the “Default”). Thereafter, a request for entry of a default judgment was submitted to the Court and a default judgment was entered on July 6, 2017 (the “Default Judgment”).

Defendant’s motion is supported by the Declaration of Breanne West filed August 15, 2025 as part of the Motion to Set Aside Default (the “Supporting Declaration”).

Plaintiff filed an opposition to Defendant’s Motion to Set Aside Default on October 29, 2025, including an opposition Declaration of Dianne Cravens (“Opposition Declaration”).

Analysis

1. Lack of Actual Notice of the Pending Lawsuit.

Defendant seeks relief under Code of Civil Procedure section 473.5.

Code of Civil Procedure section 473.5 allows a party to bring a motion to set aside a default entered against the party where “service of a summons has not resulted in actual notice to a party in time to defend the action.” Code Civ. Proc. § 473.5(a). The motion “shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect.” *Id.* § 473.5(b).

The service was done by a registered process server. See 5/2/16 POSS at ¶7. This raises a